

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4440

By: Hilbert

COMMITTEE SUBSTITUTE

An Act relating to public health and safety; ordering a legislative referendum; requiring certain persons to perform work or other services as condition for eligibility for Medicaid benefits; providing ballot title; providing for codification; and directing filing.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. Pursuant to Section 3 of Article V of the Oklahoma Constitution, there is hereby ordered the following legislative referendum which shall be filed with the Secretary of State and addressed to the Governor of the state, who shall submit the same to the people for their approval or rejection at the election to be conducted on August 25, 2026.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 7401 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1 1. "Employment" means paid employment, volunteer service, job
2 training, or education/schooling;

3 2. "Hours per month" means a total of eighty (80) hours of work
4 performed during a calendar month or an average of twenty (20) hours
5 of work performed during a four-week period; and

6 3. "Work" means paid employment, volunteer service, job
7 training, or education/schooling.

8 B. In order to be eligible for benefits in the Medicaid
9 program, unless exempt pursuant to the provisions of subsection C of
10 this section, Medicaid enrollees shall be required to perform at
11 least eighty (80) hours per month of work, volunteering, or
12 education for able-bodied, working-age adults. Non-exempt enrollees
13 must satisfy this requirement for at least one (1) month per
14 eligibility period. Applicants on or after the effective date of
15 this act shall be required to prove compliance for three (3) months
16 per eligibility period.

17 C. The following categories of persons shall be exempt from the
18 requirements of this section:

19 1. Persons with disabilities;

20 2. Persons certified as unable to work;

21 3. Persons in substance abuse treatment;

22 4. Pregnant individuals; or

23 5. Persons who are the parents or legal guardian of one or more
24 children less than thirteen (13) years of age.

SECTION 3. The Ballot Title for the proposed amendment as set forth in Section 2 of this measure shall be in the following form:

BALLOT TITLE

Legislative Referendum No. _____ State Question No. _____

THE GIST OF THE PROPOSITION IS AS FOLLOWS:

This measure proposes a law that would implement requirements for Medicaid recipients. The requirements were enacted into federal law during 2025. The Oklahoma Health Care Authority would be required to implement these requirements in a way consistent with the federal law.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES _____

AGAINST THE PROPOSAL — NO _____

SECTION 4. The Chief Clerk of the House of Representatives, immediately after the passage of this measure, shall prepare and file one copy thereof, including the Ballot Title set forth in SECTION 3 hereof, with the Secretary of State and one copy with the Attorney General.

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